Date: November 5, 2014

Program ID : PRG-1009231

Program Name: Eateries

Operator:
EATERIES INC CORP
11220 S SANTA FE AVE
EDMOND OK 73003

Distributor:
PERFORMANCE FOODSRV ROMA NEW JERSEY
301 HERON DR
SWEDESBORO NJ 08085-1773

Effective Dates: January 1, 2014 through December 31, 2014
Print Date: November 10, 2014

Price Type: Rebate

PERFORMANCE FOODSRV ROMA NEW JERSEY,

We are pleased to confirm pricing information for orders requested for delivery between January 1, 2014 and December 31, 2014 for the above named operator only. During this time period, product sold to PERFORMANCE FOODSRV ROMA NEW JERSEY for delivery to EATERIES INC CORP will receive the rebate type price to PERFORMANCE FOODSRV ROMA NEW JERSEY the product(s) found in the pricing table (showing prices and rates).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Maria Cepeda

Kraft Representative

Date: November 5, 2014
PRG-1009231 - Rebate

SCC#	Product Description	UOM	Rebate Pays To: Distributor
00210006031100	KR 120 SL 4/5# AMERICAN	CS	$2.45
00210006333000	VELVEETA 6/5# CHEESE SPREAD	CS	$3.50
00210006421900	KR 4/1 GA MAYO	CS	$3.20
00210006430200	KR 4/1GA POURABLE 1000 ISLD	CS	$3.15
00210006430300	KR 4/1 GA GOLDEN ITALIAN	CS	$3.00
00210006435400	KR 4/1 GA RANCH	CS	$3.50
00210006438000	KR 4/1 GA CATALINA	CS	$3.00
00210006438200	KR 4/1 GA COLESLAW	CS	$3.00
00210006464600	KR FREE 4/1GA FF RANCH	CS	$3.00
00210006474200	KR FREE 4/1GA FF RASPBERRY VIN	CS	$3.00
00210006486800	KR 4/1 GA TARTAR SAUCE	CS	$2.00
00210006488600	KR 4/1 GA POURABLE BLUE CHS	CS	$3.00
00210007044300	KR 36/7Z MAC&CHEESE FRZN PCH	CS	$0.00
00210007044325	KR 36/7Z MAC&CHEESE FRZN PCH	CS	$0.00
00210007050600	KR 4/1GA SIGN CREAMY CAESAR	CS	$1.50
00210007051200	KR SIGN 4/1GA HONEY DIJON	CS	$2.90
00210007052400	KR 4/1 GA HONEY MUSTARD	CS	$3.25
00430000651200	PHL 4/60Z CHSCK PUMPKIN	CS	$2.00
00544000000200	A1 12/10Z STEAK SAUCE	CS	$0.00
00544000000300	A1 24/5Z STEAK SAUCE	CS	$0.00
00544000006800	GP 4/48Z BISTRO SAUCE	CS	$1.50
00544000006825	GP 4/48Z BISTRO SAUCE	CS	$1.50

RATE INFORMATION
The contract rate per item will be stated as follows:
I. Headquarter Rebate defined as a percent unit basis.

DETAILS
I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.
II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.
III. Supporting Documentation is required for all Allowance requests:
> Distributor Name with company location and Contract Number
> Kraft contract number
> Shipment dates for each sales transaction
> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information
> Kraft product code number or GTIN number
> Description of product item pack, size, item brand & UOM
> Total cases purchased
> Requested case rates per product and total rebate dollar amount per product
IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.
V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT
I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.
II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION
I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.
II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.
III. Please include the Contract ID # in all communications
IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com
OR mail paper claims to:
Kraft Foods Group – Claims Processing
P. O. Box 15887
Pittsburgh, PA 15244
V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

The information transmitted is intended only for the person or entity to which it is addressed and may contain confidential and/or privileged material. Any review, retransmission, dissemination or other use of, or taking of any action in reliance upon, this information by persons or entities other than the intended recipient is prohibited. If you received this in error, please contact the sender and delete the material from all computers.